

23CMCV00374 23CMCV00374

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-01

Motion: MOTION TO VACATE DEFAULT JUDGMENT AS TO DEFENDANT ANDRES FLORES (DECEASED) DATE: July 1, 2026 TIME: 8:30 A.M.

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Case Number: 23CMCV00374 Hearing Date: July 1, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

CITY

OF COMPTON, a California Municipal Corporation,

Plaintiff,

vs.

COMPTON CANNA COUGHY

CANNABIS DISPENSARY, an unknown business entity; COMPTON 20 CAP COLLECTIVE,
an unknown business entity; NUGS WITH ATTITUDE, an unknown business entity;
SPECT WONDERS, INC., a California corporation; GREGORIO OCAMPO, an
individual; MARGARITA FLORES, an individual; ANDRES FLORES, an individual;
JOSEFINA DALE, an individual; and DOES 1 through 100, inclusive,

Defendants.

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CASE NO: 23CMCV00374

[TENTATIVE] ORDER RE: MOTION TO VACATE
DEFAULT JUDGMENT AS TO DEFENDANT ANDRES FLORES (DECEASED)

DATE: July 1, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Attorney
Omar S. Anorga[1]

Responding Party: Plaintiff

City of Compton

Notice: Ok

Tentative Ruling: The Motion to Vacate Default Judgment is DENIED. On the Court's own motion, the default and default judgment entered against Defendant Andres Flores are vacated and set aside.

I.

BACKGROUND

This is an action to enjoin, abate and prevent the ongoing unlawful sale, storage, manufacture and cultivation of marijuana and other illicit narcotics. Plaintiff City of Compton (the "City") alleges that Defendants Compton 20 CAP Collective ("C2C"), Compton Canna Coughy Cannabis Dispensary ("CCCD"), and Nugz with Attitudes ("Nugz") each operate unlicensed marijuana dispensaries within city limits. Nugz is alleged to be affiliated with C2C. Defendant Spect Wonders, Inc. ("Spect") is alleged to own CCCD and C2C and Defendant Gregorio Ocampo ("Ocampo") is alleged to be the chief financial officer of Spect. All the entity Defendant are alleged to operate in association with one another and conspire with one another in the distribution of untested, untaxed and unregulated marijuana within the City of Compton. Defendants Andres Flores ("Andres")^[2], Margarita Flores ("Margarita"), Jorge Ramos ("Ramos") and Josefina Dale ("Dale") are each alleged to separately or jointly own one of the buildings housing the dispensaries.

On March 10, 2023, the City filed its operative Complaint against C2C, CCCD, Nugz, Spect, Ocampo, Andres, Margarita, Dale, and Does 1 through 100, inclusive, alleging causes of action for (1) Narcotics Abatement (Health and Safety Code Sections 11570, et seq.; (2) Public Nuisance (Civil Code Sections 3479, et seq.; (3) Violation of Compton Municipal Code (CMC Chapters 9-24.3); (4) Violation of Compton Municipal Code (CMC Chapters 30-33); (5) Violation of Unfair Competition Law (Business and Professions Code Sections 17200, et seq.; and (6) Violation of MAUCRSA (Business and Professions Code Section 26000, et seq.^[3]

Andres was served via publication pursuant to an Order for Publication issued on February 21, 2024. (See Order for Publication, 2/21/24; see also Proof of Service of Summons (A. Flores), 4/8/24.) Andres' default was entered on May 51, 2024. (See Request for Entry of Default, 5/15/24.) And a default judgment was entered against Andres on December 16, 2024. (See Judgment, 12/16/24.)

On February 24, 2026, Attorney Omar S. Anorga of The Anorga Law Firm, Inc. ("Anorga") filed the instant Motion to Vacate Default Judgment as to Defendant Andres Flores (Deceased).

On April 1, 2026, the City filed its Opposition.

On April 7, 2026, Anorga filed a Reply.

II. ANALYSIS

A. Legal Standard

Pursuant to Code of Civil Procedure § 473(d), a Court may correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order. (Code Civ. Proc. § 473(d).) There is no time limit on a motion to set aside a void judgment or order.

B. Discussion

Anorga moves the Court for an order setting aside the judgment entered against Andres, arguing that the Court had no jurisdiction over Andres given that he died in 2021 – well before the Complaint in this matter was filed and well before any default was taken or judgment was entered.

The City opposes, arguing that the motion should be denied because it is not brought by any legally cognizable party with capacity to seek relief.

The

Court first notes that the City does not dispute the facts put forth by Anorga, only Anorga's ability to seek relief on behalf of Andres given that Andres is deceased. Accordingly, the Court determines that the City concedes that Andres died on August 5, 2021 as is evidenced by the U.S. Department of State Report of a Death of a U.S. Citizen or U.S. Non-Citizen National Abroad attached to Margarita's declaration. (See Margarita Decl., Exh. 1.) Accordingly, the Court finds that Andres' death occurred prior to the March 10, 2023 filing of the Complaint in this matter and prior to the entry of Andres' default and the December 16, 2024 entry of the default judgment against Andres.

As

to the City's contention that Anorga has no authority to seek relief on Andres' behalf, the Court finds merit, albeit with an asterisk. Anorga does not identify himself as an estate representative or other person properly authorized to act on Andres' behalf and does not contest Exhibit A attached to the City's Opposition wherein he states "[t]o be clear, I do not represent any estate of Mr. Andres Flores, and I am not authorized to accept service or make any representations on behalf of any estate, personal representative, successor-in-interest, or other substituted party." (See Opp., Exh. A.) As the City correctly points out, the death of a client terminates an attorney's authority to act on behalf of that client. (See *Swartfager v. Wills* (1942) 53 Cal.App.2d 522, 527-528 ("The authority of an attorney necessarily ceases with the death of the client, for no one can act for a dead man. After the death of the client, his attorney therefore becomes a stranger to the proceedings").) However, on the other hand, "[a] judgment absolutely void may be attacked anywhere, directly or collaterally whenever it presents itself, either by parties or strangers. It is simply a nullity, and can be neither a basis nor evidence of any right whatever." (*OC Interior Services, LLC v. Nationstar Mortgage, LLC* (2017) 7 Cal.App.5th 1318, 1330 ("OC Interior"))(quoting *Andrews v. Superior Court of San Joaquin County* (1946) 29 Cal.2d 208, 214-215.) It would therefore appear that, should the December 16 judgment be determined to be void, Anorga both can and cannot seek relief pursuant to Code of Civil Procedure § 473(d).

However,

the Court does not need to square the conflicting authority as to whether Anorga may seek relief. The Court has inherent authority to set aside a void default judgment independently of Code

of Civil Procedure § 473(d) and it is immaterial how the invalidity is called to the Court's attention. (See *Security Pac. Nat. Bank v. Lyon* (1980) 105 Cal.App.3d Supp. 8, 13; see also *Dakota Payphone, LLC v. Alcaraz* (2011) 192 Cal.App.4th 493, 503 ("The trial court may modify its judgment by striking therefrom that portion that is void on the face of the judgment roll . . . on its own motion, at any time its attention, by any manner, is called to the error").) Accordingly, of its own accord, the Court proceeds with its analysis as to whether the judgment against Andres is void.

As

is noted above, the City does not contest that Andres died approximately 1 year and seven months prior to the filing of the Complaint in this matter. "The law is well settled that if the plaintiff or defendant was dead before the action was begun, the judgment is void and subject to collateral attack, because he never was a party, i.e., the court never acquired jurisdiction of the person." (*Walter v. National Indem. Co.* (1970) 3 Cal.App.3d 630, 634 (internal quotations omitted); accord *Wooley v. Seijo* (1964) 224 Cal.App.2d 615 (Holding that a judgment against a deceased defendant is void if the defendant was deceased before the action began); *OC Interior Services*, supra, 7 Cal.App.5th at p. 1330 ("When a court lacks jurisdiction in a fundamental sense, such as lack of authority over the subject matter or the parties, an ensuing judgment is void.").) Because Andres was deceased well prior to the commencement of this action, the Court finds a fundamental lack of jurisdiction as to Andres and thus finds that, as to Andres only, the December 16, 2024 judgment is void.

III.

CONCLUSION

Anorga's Motion to Vacate is DENIED.

On the Court's own motion, the default and default judgment against Andres are vacated and set aside. This matter is ordered returned to the active docket so that Plaintiff may determine if it wishes to locate and serve any estate or personal representative for Andres.

A Case Management Conference is set for November 3, 2026 at 8:30 a.m. in Dept. E.

[1] Attorney Anorga purports to move

on behalf of deceased Defendant Andres Flores.

[2] As Andres and Margarita have the same surname, first names are used for clarity.

[3] Ramos was named as DOE 1 on August 3, 2023. (See Amendment to Complaint (Fictitious/Incorrect Name), 8/3/23.)